



There's no escape from the arms of the law

porate for processing, stored or processed under lawful contract or otherwise:

provided that, any information that is freely available or accessible in public domain or furnished under the Right to Information Act, 2005 or any other law for the time being in force shall not be regarded as sensitive personal data or information for the purposes of these rules.

The full text of the ruling can be found at: <https://dgit.in/datalawsindia>

Section 72(A)

This section of the Information Technology Act, 2000, defines the punishment in case of disclosure of information in breach of a lawful contract. The section goes as follows, "Punishment for disclosure of information in breach of lawful contract.-- Save as otherwise provided in this Act or any other law for the time being in force, any person including an intermediary who, while providing services under the terms of lawful contract, has secured access to any material containing personal information about another person, with the intent to cause or knowing that he is likely to cause wrongful loss or wrongful gain discloses, without the consent of the person concerned, or in breach of a lawful contract, such material to any other person, shall be punished with imprisonment for